

STEWART, J., dissenting.

359 U. S.

by the extraordinary writ of mandamus.¹ In any event no abuse of discretion is apparent in this case.

The complaint filed by Fox stated a claim traditionally cognizable in equity. That claim, in brief, was that Beacon had wrongfully interfered with the right of Fox to compete freely with Beacon and other distributors for the licensing of films for first-run exhibition in the San Bernardino area. The complaint alleged that the plaintiff was without an adequate remedy at law and would be irreparably harmed unless the defendant were restrained from continuing to interfere—by coercion and threats of litigation—with the plaintiff's lawful business relationships.

The Court of Appeals found that the complaint, although inartistically drawn, contained allegations entitling the petitioner to equitable relief.² That finding is accepted in the prevailing opinion today. If the complaint had been answered simply by a general denial, therefore, the issues would under traditional principles have been triable as a proceeding in equity. Instead of just putting in issue the allegations of the complaint, however, Beacon filed pleadings which affirmatively alleged the existence of a broad conspiracy among the plaintiff and other theatre owners to monopolize the first-run exhibition of films in the San Bernardino area, to refrain from competing among themselves, and to discriminate against Beacon in granting film licenses. Based upon these allegations, Beacon asked damages in the amount of \$300,000. Clearly these conspiracy allegations stated a cause of action triable as of right by a

¹ Compare *Black v. Boyd*, 248 F. 2d 156, with *Black v. Boyd*, 251 F. 2d 843.

² Cf. *De Groot v. Peters*, 124 Cal. 406; *California G. C. Bd. v. California P. Corp.*, 4 Cal. App. 2d 242, 244, 40 P. 2d 846. Compare *Kessler v. Eldred*, 206 U. S. 285; *International News Serv. v. Associated Press*, 248 U. S. 215, 236; *Truax v. Raich*, 239 U. S. 33, 38.